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Case Number: 24PSCV00393 Hearing Date: July 22, 2026 Dept: 6

CASE

NAME: Melissa

Clark v. University of La Verne

Plaintiff

Melissa Clark's Motion for Leave to File Third Amended Complaint

TENTATIVE

RULING

The Court GRANTS Plaintiff Melissa Clark's Motion for Leave to File Third Amended Complaint. Plaintiff must file and serve the proposed Third Amended Complaint within five calendar days of this order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a higher education dispute. On February 7, 2024, plaintiff Melissa Clark (Plaintiff) filed this action. On July 3, 2024, Plaintiff filed the First Amended Complaint (FAC) against defendants University of La Verne, Devorah Lieberman, Karop Janoyan, Leo Berrera, Kathy Elderson, Maria Garcia, Lily Damon, Kimberly A. White-Smith, Victoria Escoffery-Runnels, and Does 1 through 50, alleging causes of action for breach of contract (two counts), negligence (NIED), intentional infliction of emotional distress (IIED), and exemplary damages.

On November 13, 2024, following the Court sustaining Defendant University's demurrer to the Third and Fourth Causes of Action of the FAC with leave to amend, Plaintiff filed the operative Second Amended Complaint (SAC) against defendants University of La Verne (University), Devorah Lieberman, Karop Janoyan, Leo Berrera, Kathy Elderson, Maria Garcia, Lily Damon, Kimberly A. White-Smith, Victoria Escoffery-Runnels, and Does 1 through 50, alleging the same causes of action for breach of contract (two counts), negligence (NIED), intentional infliction of emotional distress (IIED), and exemplary damages.

On June 23, 2026, Plaintiff moved for leave to file a Third Amended Complaint. On July 9, 2026, Defendant University opposed the Motion. On July 14, 2026, Plaintiff replied to University's Opposition.

LEGAL STANDARD

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047 (*Kittredge Sports*).)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

PRELIMINARY ISSUES

Plaintiff's

Motion incorrectly attributes the quotation "it is a rare case in which denial of leave to amend can be justified" to Kittredge Sports Co. v. Superior Court (1989)[1] 213 Cal.App.3d 1045. (Motion, 4:6-7.) No such language is found in that case. (See generally, *ibid.*) Plaintiff's Reply also misquotes *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486 (*Hirsa*). Specifically, Plaintiff's Reply reads "it is 'not only error but an abuse of discretion'...", but *Hirsa* does not include the words "only error." (Reply, 3:8-9; *Hirsa*, *supra*, 118 Cal.App.3d at pp. 488-489.) Plaintiff's Reply also omits the phrase "to the complaint" from its quotation of *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761. (Reply, 8:16-17.) The Court will discuss these issues with Plaintiff's counsel at the hearing on this Motion.

DISCUSSION

Summary of Arguments

Plaintiff

seeks leave to file a Third Amended Complaint to add a cause of action based on the implied covenant of good faith and fair dealing. Plaintiff contends the proposed claim introduces no new facts and merely applies a new legal theory, i.e., the bad faith exercise of contractual discretion, to allegations already before the Court. Plaintiff argues that California's liberal amendment policy requires that leave be granted at any stage absent a clear showing of meaningful prejudice, and that implied covenant claim is legally viable and analytically distinct from her existing breach of contract claims. Plaintiff asserts that La Verne will not be prejudiced because the claim arises from facts known to it throughout the litigation, no depositions have occurred, all

witnesses remain available, and no continuance is required. Plaintiff contends that the amendment is sought in good faith and without undue delay, the implied-covenant theory having been identified through post-discovery, pre-deposition analysis, and notes that the proposed pleading also removes two previously dismissed tort claims and consolidates duplicative allegations. Finally, Plaintiff contends the Motion satisfies rule 3.1324 and that no limitations period has run because the new claim arises from the same facts pleaded in the existing breach of contract claims.

In opposition, University argues the proposed amendment is not based on any new facts of which Plaintiff was previously unaware, and that Plaintiff admits the implied covenant claim rests on facts identical to those alleged in her existing breach of contract claim. University contends Plaintiff has articulated no viable reason for the delay and could have added the claim at the initial pleading stage, and that her attribution of the delay to University's discovery responses is unsupported by any facts identifying when that discovery was served or answered. Third, University asserts it would be prejudiced at this stage because it would lack time to challenge the new cause of action by demurrer or to conduct discovery necessary to attack it on summary judgment, and requests in the alternative that any grant of leave be conditioned on a continuance of the trial date and all related dates. University further argues the amendment is barred by the four-year statute of limitations, which it calculates as running from the February 2022 dismissal and expiring in February 2026, before the Motion was filed.

In reply, Plaintiff argues that the absence of new facts confirms the absence of prejudice, because applying a new legal theory to facts University has known and litigated since the original Complaint is precisely what the liberal amendment standard permits, and denial is reserved for genuine prejudice such as surprise, lost evidence, or the need to reopen discovery. Plaintiff distinguishes University's legal authorities as condemning eleventh-hour attempts to inject an unsupportable theory to defeat a pending dispositive motion, unlike her motion, which was noticed under rule 3.1324 months before trial with no summary judgment motion pending. On the statute of limitations, Plaintiff invokes the relation-back doctrine, arguing that an amended pleading, even one adding an entirely new cause of action against a defendant already in the case, relates back to the original complaint when it rests on the same general set of facts. Plaintiff further argues that University's own conduct undermines any prejudice

claim, as University recently filed a cross-complaint against Etiwanda School District, whereas Plaintiff's amendment adds no party and requires no new discovery. Plaintiff reiterates that no depositions have occurred and all witnesses remain available, and states that she does not oppose a reasonable continuance of the trial date applied equally to all parties.

Analysis

The Court finds leave to amend sufficiently proper here. Policy strongly favors leave to amend. (*Kittredge Sports*, *supra*, 213 Cal.App.3d at p. 1047.) Plaintiff provided a copy of the proposed Third Amended Complaint and indicated the proposed deletions and additions, albeit not to the degree of specificity required by Rule 3.1324, subdivision (a), of the California Rules of Court. (Axelberg Decl., ¶ 19, Ex. A; Cal. Rules of Court, rule 3.1324, subd. (a).) Plaintiff's counsel provided a declaration addressing the factors set forth in Rule 3.1324, subdivision (b), of the California Rules of Court. (Axelberg Decl., ¶¶ 3-11; Cal. Rules of Court, rule 3.1324, subd. (b).) While the Court agrees with University that Plaintiff does not provide a lot of facts explaining when the facts giving rise to the amendment were discovered or why the request was not made earlier, the Court reiterates the strong policy favoring leave to amend. (See Axelberg Decl., ¶¶ 9-11; *Kittredge Sports*, *supra*, 213 Cal.App.3d at p. 1047.) The Court further finds that the proposed amendments arise from the same set of facts such that they relate back. (*Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1199.)

The Court does agree with University that the proposed amendment is close to trial and could potentially prejudice University in preparing for trial. (See *Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 488.) But, the proposed new cause of action for breach of the implied covenant of good faith and fair dealing is sufficiently similar or at least related to Plaintiff's breach of contract claims that it does not appear to the Court it would open an entirely new line of discovery resulting in prejudice to Defendant. Further, Defendant recently was granted leave to file a cross-complaint and the Court discussed with the parties the likelihood that the trial would be continued and a further discussion would be held at the hearing on the demurrer to the cross-complaint on July 23, 2026.

Based on the foregoing, the Court GRANTS the Motion. Plaintiff must file and serve the proposed Third Amended Complaint

within five calendar days of this order.

CONCLUSION

The Court GRANTS Plaintiff Melissa Clark's Motion for Leave to File Third Amended Complaint. Plaintiff must file and serve the proposed Third Amended Complaint within five calendar days of this order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Plaintiff's Motion also cites the wrong year for this case. The correct year is 1989, not 1988. (See Motion, 4:6-7; 213 Cal.App.3d 1045.)